



NEW MEXICO ASSOCIATION OF REALTORS® — 2025
ADDENDUM NO. _____
LEAD-BASED PAINT ADDENDUM TO PURCHASE AGREEMENT



⚠ ATTENTION BUYER/SELLER ⚠

Federal law requires Seller to provide to Buyer all disclosures set forth in this Addendum AND to receive acknowledgment from Buyer that Buyer has received these disclosures PRIOR TO full execution of the Purchase Agreement. Further, Buyer shall not be obligated to purchase the Property unless Buyer has been provided an opportunity to inspect the Property as set forth in this Addendum. [Click here](#) for the Lead Base Paint Brochure

This Addendum is part of the Purchase agreement dated _____,
Relating to the following Property:

Address (Street, City, State, Zip Code) _____

Legal Description _____

or see metes and bounds or other legal description attached as Exhibit _____, _____ County(ies),
New Mexico.

1. LEAD WARNING STATEMENT.

Every Buyer of any interest in residential real property on which a residential dwelling was built prior to 1978 is notified that such property may present exposure to lead from lead-based paint that may place young children at risk of developing lead poisoning. Lead poisoning in young children may produce permanent neurological damage, including learning disabilities, reduced intelligence quotient, behavioral problems, and impaired memory. Lead poisoning also poses a particular risk to pregnant women. The Seller of any interest in residential real property is required to provide the Buyer with any information on lead-based paint hazards from risk assessments or inspections in the Seller's possession and notify the Buyer of any known lead-based paint hazards. A risk assessment or inspection for possible lead-based paint hazards is recommended prior to purchase.

2. SELLER'S DISCLOSURE.

A. Presence of lead-based paint and/or lead-based paint hazards (*initial (i) or (ii) below as applicable*):

i. Known lead-based paint and/or lead-based paint hazards are present in the housing (*explain*): SELLER(S) _____

ii. Seller has no knowledge of lead-based paint and/or lead-based paint hazards in the housing. SELLER(S) _____

B. Records and reports available to the Seller (*initial (i) or (ii) below as applicable*):

i. Seller has provided Buyer with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the housing (*list documents below*): SELLER(S) _____

ii. Seller has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing. SELLER(S) _____

3. BUYER'S ACKNOWLEDGEMENT. (*both A and B should be initialed*)

A. Buyer has received the Lead-Based Paint Warning Statement set forth in Paragraph 1 above, the Seller's Lead-Based Paint Disclosures referenced in Paragraph 2(A) and if applicable, the records and reports accompanying Seller's Disclosures referenced in Paragraph 2(B). BUYER(S) _____

B. Buyer has received the pamphlet "Protect Your Family from Lead in Your Home." BUYER(S) _____

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4. BUYER'S RIGHTS. (initial A or B below as applicable):

- A. Buyer has received a ten (10) day opportunity (or mutually agreed upon period) to conduct a risk assessment or inspection for the presence of lead-based paint and/or lead-based paint hazards; **OR** BUYER(S) _____
- B. Buyer has waived the opportunity to conduct a risk assessment or inspection for the presence of lead-based paint and/or lead-based paint hazards. BUYER(S) _____

 ATTENTION BUYER/SELLER

Both the Seller's Broker and the Buyer's Broker (if compensated by the Seller or Seller's Broker) are considered the "agents" under the Regulations and are required to certify as follows and sign this form, regardless of their brokerage relationships. Therefore, both the Seller and Buyer's brokers should initial below UNLESS the Buyer's Broker is being compensated entirely by the Buyer.

5. BROKER'S CERTIFICATION. (both A and B should be initialed):

A. Agent has informed Seller of Seller's obligations under Sec. 42 U.S.C.A. 4852d to:

- 1) Provide Buyer with the federally approved pamphlet, "Protect Your Family from Lead in Your Home;"
- 2) Complete this Lead-based Paint Addendum before giving it to Buyer;
- 3) Disclose any known lead-based paint or lead-based paint hazards in the Property;
- 4) Deliver to Buyer a list of and copies of all records and reports pertaining to lead-based paint and/or lead based paint hazards in the Property;
- 5) Provide Buyer with a ten-day (10) period (or other period mutually agreed in writing by Buyer and Seller) to have the Property inspected;
- 6) Retain a completed copy of this Addendum for at least three (3) years following the closing of the sale.

BUYER BROKER(S) _____ SELLER BROKER(S) _____

B. Agent is aware of Agent's duty to ensure compliance with the requirements of Sec. 42 U.S.C.A.4852d.

BUYER BROKER(S) _____ SELLER BROKER(S) _____

Warning

Provisions of this form are required by Federal Regulations and should not be revised.

 CERTIFICATION

Each of the following parties has reviewed the information above and certifies, to the best of his or her knowledge, that the information provided by that party is true and accurate.



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BUYER(S)

_____ Buyer Signature	_____ Printed Name	_____ Date	_____ Time
_____ Buyer Signature	_____ Printed Name	_____ Date	_____ Time

SELLER(S)

_____ Seller Signature	_____ Printed Name	_____ Date	_____ Time
_____ Seller Signature	_____ Printed Name	_____ Date	_____ Time

If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

SELLER'S BROKER(S)

_____ Broker Signature	_____ Printed Name	_____ Date	_____ Time
_____ Qualifying Broker's Name and NMREC License No..			
_____ Brokerage Firm Name	_____ Office Phone	_____ Cell Phone	_____ Email Address
			Broker ☐ is ☐ is not a REALTOR®
_____ Brokerage Address (Street, City, State, Zip Code)			

BUYER'S BROKER(S)

_____ Broker Signature	_____ Printed Name	_____ Date	_____ Time
_____ Qualifying Broker's Name and NMREC License No.			
_____ Brokerage Firm Name	_____ Office Phone	_____ Cell Phone	_____ Email Address
			Broker ☐ is ☐ is not a REALTOR®
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